

An Act

ENROLLED HOUSE
BILL NO. 3040

By: West (Josh) and Wolfley of
the House

and

Hamilton of the Senate

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 1125, as amended by Section 400, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1125), which relates to zones of safety; expanding zone of safety to include certain places; prohibiting sex offenders from loitering near places that cater to minors; and providing an effective date.

SUBJECT: Crimes and punishments

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 1125, as amended by Section 400, Chapter 486, O.S.L. 2025 (21 O.S. Supp. 2025, Section 1125), is amended to read as follows:

Section 1125. A. A zone of safety is hereby created around elementary, junior high and high schools, permitted or licensed child care centers as defined by the Department of Human Services, playgrounds, parks ~~or~~, the residence of a victim of a sex crime, or any facility, business, or location that primarily caters to or provides services for minors including, but not limited to, skating rinks, youth recreation centers, public swimming pools, arcades, amusement parks, and water parks.

1. A person is prohibited from loitering within five hundred (500) feet of any elementary, junior high or high school, permitted or licensed child care center, playground, ~~or~~ park, or any facility, business, or location that primarily caters to or provides services for minors including, but not limited to, skating rinks, youth recreation centers, public swimming pools, arcades, amusement parks, and water parks, if the person has been convicted of a crime that

requires the person to register pursuant to the Sex Offenders Registration Act or the person has been convicted of an offense in another jurisdiction, which offense if committed or attempted in this state, would have been punishable as one or more of the offenses listed in Section 582 of Title 57 of the Oklahoma Statutes and the victim was a child under the age of sixteen (16) years.

2. A person is prohibited from entering any ~~park~~ zone of safety if:

- a. the person has been designated as a habitual or aggravated sex offender as provided in Section 584 of Title 57 of the Oklahoma Statutes, or
- b. the person has been convicted of an offense in another jurisdiction, which offense, if committed or attempted in this state, would designate the person as a habitual or aggravated sex offender as provided in Section 584 of Title 57 of the Oklahoma Statutes.

3. A person is prohibited from loitering within one thousand (1,000) feet of the residence of his or her victim if:

- a. the person who committed a sex crime against the victim has been convicted of said crime, and
- b. the person is required to register pursuant to the Sex Offenders Registration Act.

B. A person convicted of a violation of subsection A of this section shall be guilty of a Class D1 felony offense punishable by a fine not exceeding Two Thousand Five Hundred Dollars (\$2,500.00), or by imprisonment as provided for in subsections B through F of Section 20N of this title, or by both such fine and imprisonment. Any person convicted of a second or subsequent violation of subsection A of this section shall be guilty of a Class D1 felony offense and shall be punished by a fine not exceeding Two Thousand Five Hundred Dollars (\$2,500.00), or by imprisonment as provided for in subsections B through F of Section 20N of this title, or by both such fine and imprisonment. This proscription of conduct shall not modify or remove any restrictions currently applicable to the person by court order, conditions of probation or as provided by other provision of law.

C. 1. A person shall be exempt from the prohibition of this section regarding a school or a licensed or permitted child care facility only under the following circumstances and limited to a reasonable amount of time to complete such tasks:

- a. the person is the custodial parent or legal guardian of a child who is an enrolled student at the school or child care facility, and
- b. the person is enrolling, delivering or retrieving such child at the school or licensed or permitted child care center during regular school or facility hours or for school-sanctioned or licensed-or-permitted-child-care-center-sanctioned extracurricular activities.

Prior to entering the zone of safety for the purposes listed in this paragraph, the person shall inform school or child care center administrators of his or her status as a registered sex offender. The person shall update monthly, or as often as required by the school or center, information about the specific times the person will be within the zone of safety as established by this section.

2. This exception shall not be construed to modify or remove any restrictions applicable to the person by court order, conditions of probation, or as provided by other provision of law.

D. The provisions of subsection A of this section shall not apply to any person receiving medical treatment at a hospital or other facility certified or licensed by the State of Oklahoma to provide medical services. As used in this subsection, "medical treatment" shall not include any form of psychological, social or rehabilitative counseling services or treatment programs for sex offenders.

E. Nothing in this section shall prohibit a person, who is registered as a sex offender pursuant to the Sex Offenders Registration Act, from attending a recognized church or religious denomination for worship; provided, the person has notified the religious leader of his or her status as a registered sex offender and the person has been granted written permission by the religious leader.

F. For purpose of prosecution of any violation of this section, the provisions of Section 51.1 of this title shall not apply.

G. As used in this section, "park" means any outdoor public area specifically designated as being used for recreational purposes that is operated or supported in whole or in part by a homeowners' association or a city, town, county, state, federal or tribal governmental authority.

SECTION 2. This act shall become effective November 1, 2026.

Passed the House of Representatives the 11th day of March, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 4th day of May, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____

Approved by the Governor of the State of Oklahoma this _____
day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____
day of _____, 20_____, at _____ o'clock _____ M.
By: _____